



General Services Office
U.S. DEPARTMENT *of* STATE

Request For Quotes

Blanket Purchase Agreement for Heating Fuel Delivery Services

Solicitation No: 19BE2026Q0065

Contracting & Acquisition Office

U.S. Embassy Brussels
Regentlaan 25-27 Boulevard du Regent
1000 Brussels
Belgium

TABLE OF CONTENTS

SECTION 1 - THE SCHEDULE

- 1.0 PERFORMANCE WORK STATEMENT
 - 1.1 GENERAL
 - 1.2 ACQUISITION METHOD
- 2.0 BPA DETAILS
 - 2.1 BPA CALL LIMITATIONS AND ESTIMATED VALUE
 - 2.2 VALIDITY
 - 2.3 CURRENCY
 - 2.4 VALUE ADDED TAX
 - 2.5 SELECTION OF AWARDEE FOR INDIVIDUAL BPA-CALLS
- 3.0 STATEMENT OF WORK

SECTION 2 - CONTRACT CLAUSES (ATTACHMENT A)

- CONTRACT CLAUSES
- ADDENDUM TO CONTRACT CLAUSES – FAR AND DOSAR NOT PRESCRIBED IN PART 12

SECTION 3 - SOLICITATION PROVISIONS (ATTACHMENT B)

- SOLICITATION CLAUSES
- ADDENDUM TO SOLICITATION CLAUSES – FAR AND DOSAR NOT PRESCRIBED IN PART 12

SECTION 4 - EVALUATION FACTORS(ATTACHMENT C)

- EVALUATION FACTORS
- ADDENDUM TO EVALUATION FACTORS – FAR AND DOSAR NOT PRESCRIBED IN PART 12

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS (ATTACHMENT D)

- OFFEROR REPRESENTATIONS AND CERTIFICATIONS
- ADDENDUM OFFEROR REPRESENTATIONS AND CERTIFICATIONS – FAR AND DOSAR NOT PRESCRIBED IN PART 12

SECTION 1 - THE SCHEDULE

1.0 PERFORMANCE WORK STATEMENT

1.1 GENERAL

The U.S. Embassy Brussels, through NATO/GSO requires heating fuel delivery services.

1.2 ACQUISITION METHOD

The Government is conducting this acquisition using Simplified Acquisition Procedures in accordance with FAR Part 12.

2.0 BPA DETAILS

This solicitation will result in the establishment of a single Blanket Purchase Agreement (BPA) from which numerous individual purchases at or below the simplified acquisition threshold will likely be made in a given period.

2.1 BPA CALL LIMITATIONS AND ESTIMATED VALUE

- (a) The individual Call issued under this BPA shall not exceed the Simplified Acquisition Threshold (SAT) as defined in FAR 2.101. The aggregate amount of all Calls made against this BPA shall not exceed 20,000 EUR (or dollar equivalent) The total BPA value may not exceed \$40,000 until the vendor is registered in the System for Award Management (SAM).
- (b) Pricing is in accordance with the applicable rates obtained from the contractor at the beginning of each 12-month period. Price shall include all labor, materials, overhead, profit, and transportation necessary to deliver the required services as provided on each funded BPA call. The Price schedule will serve as base line to determinate cost proposal for individual requests are fair and reasonable prior issuance of a BPA call.
- (c) This agreement does not establish any liability on the part of the Government of the United States of America to affect any actual purchase. Any Call issued during the effective period of this BPA and not completed within that period shall be completed by the contractor by the date specified in the performance period of this BPA. The BPA shall govern that order to the same extent as if the order were completed during the BPA's effective period, provided that the contractor shall not be required to make any deliveries under this BPA one year after the issuance of the BPA Call.

2.2 VALIDITY

This BPA has a validity period of one (1) year: From May 15th, 2026, until May 14th, 2027.

2.3 CURRENCY

All BPA Calls will be issued in EURO (Belgium).

2.4 VALUE ADDED TAX

Not VAT exempt -

“Value Added Tax (VAT) at a rate of 21% is applicable to this purchase and must be included in the line item rates on your invoice. The embassy will subsequently work with the Ministry of Finance (MINFIN) to obtain the VAT exempt form C151 for refund purposes.”

Failure to add all of the required text will result in the return of your invoice for correction.

2.5 SELECTION OF AWARDEE FOR INDIVIDUAL BPA-CALLS

A. The following procedures shall govern the issuance of individual BPA Calls. The Contractor shall not commence any work or incur any costs until a written BPA Call (order) has been issued by an authorized U.S. Government official (the General Service Officer at the U.S. Embassy Brussels) or an U.S. Government Official with a valid warrant.

B. A BPA call is considered "issued" when-

- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
- (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
- (3) If sent electronically, the Government either—
 - (i) Posts a copy of the BPA Call to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the BPA call via email to the Contractor's email address.
- (4) BPA Calls may be issued by methods other than those enumerated in this clause only if authorized under this Agreement.

3. STATEMENT OF WORK

Fuel Delivery Services for U.S. Government-Owned Residence

1. Scope

The Contractor shall furnish all labor, supervision, equipment, materials, and transportation necessary to provide delivery of heating fuel to U.S. Government-owned Residence, in accordance with the terms and conditions of the resulting Blanket Purchase Agreement (BPA).

2. Requirements

The Contractor shall:

- Provide scheduled and unscheduled (on-call and emergency) fuel deliveries to designated residences.
- Ensure continuity of supply to prevent disruption of residential heating services.
- Coordinate delivery schedules with the designated Government official.
- Maintain capability to respond to emergency delivery requests within 24 hours.
- Ensure all delivery personnel are properly trained, licensed, and qualified.

3. Performance Standards

- Deliver fuel in a timely manner consistent with agreed delivery schedules and response times.
- Accurately measure and document quantities delivered.
- Exercise due care to prevent spills, property damage, or safety hazards during delivery.

4. Compliance

The Contractor shall comply with all applicable Federal Acquisition Regulation (FAR) clauses, Department of State acquisition policies, and all federal, state, and local laws and regulations, including those related to environmental protection, hazardous materials handling, and transportation safety.

5. Inspection and Acceptance

The Government reserves the right to inspect all services performed. Deliveries shall be subject to acceptance by the authorized Government representative.

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ATTACHEMENT B
SECTION 2 - CONTRACT CLAUSES

**52.212-4 TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND
COMMERCIAL SERVICES (DEVIATION AUG 2025)**

(a) *Definitions.* The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.*, use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment—*

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ([31 U.S.C. 3903](#)) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if—

- (A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;
 - (B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or
 - (C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).
 - (iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.
 - (v) Amounts shall be due at the earliest of the following dates:
 - (A) The date fixed under this contract.
 - (B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.
 - (vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—
 - (A) The date on which the designated office receives payment from the Contractor;
 - (B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or
 - (C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.
 - (vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.
- (j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—
- (1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or
 - (2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.
- (k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.
- (l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the

Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) *Unauthorized obligations.*

- (1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring

the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record.* This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor’s representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

**THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES ARE
INCORPORATED BY REFERENCE:**

Number	Title
52.203-6 with Alt I	Restrictions on Subcontractor Sales to the Government
52.203-13	Contractor Code of Business Ethics and Conduct
52.203-17	Contractor Employee Whistleblower Rights
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements
52.204-9	Personal Identity Verification of Contractor Personnel
52.204-13	System for Award Management—Maintenance
52.204-91	Contractor identification
52.209-6	Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations
52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns
52.219-6	Notice of Total Small Business Set-Aside
52.219-6 with Alt I	Notice of Total Small Business Set-Aside, with Alternate I
52.219-8	Utilization of Small Business Concerns
52.219-9	Small Business Subcontracting Plan
52.219-9 with Alt I	Small Business Subcontracting Plan, with Alternate I
52.219-9 with Alt II	Small Business Subcontracting Plan, with Alternate II
52.219-9 with Alt III	Small Business Subcontracting Plan, with Alternate III
52.219-9 with Alt IV	Small Business Subcontracting Plan, with Alternate IV
52.219-14	Limitations on Subcontracting
52.219-16	Liquidated Damages—Subcontracting Plan
52.219-33	Nonmanufacturer Rule
52.222-3	Convict Labor

52.222-19	Child Labor—Cooperation with Authorities and Remedies
52.222-35	Equal Opportunity for Veterans
52.222-35 with Alt I	Equal Opportunity for Veterans, with Alternate I
52.222-36	Equal Opportunity for Workers with Disabilities
52.222-36 with Alt I	Equal Opportunity for Workers with Disabilities, with Alternate I
52.222-37	Employment Reports on Veterans
52.222-40	Notification of Employee Rights Under the National Labor Relations Act
52.222-41	Service Contract Labor Standards
52.222-42	Statement of Equivalent Rates for Federal Hires
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts)
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment
52.222-50	Combating Trafficking in Persons
52.222-50 with Alt I	Combating Trafficking in Persons, with its Alternate I
52.222-51	Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements
52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements
52.222-54	Employment Eligibility Verification
52.222-62	Paid Sick Leave Under Executive Order 13706
52.223-9	Estimate of Percentage of Recovered Material Content for EPA-Designated Items
52.223-9 with Alt I	Estimate of Percentage of Recovered Material Content for EPA-Designated Items, with Alternate I
52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons
52.223-12	Maintenance
52.223-20	Aerosols
52.223-21	Foams
52.223-23	Sustainable Products and Services
52.224-3	Privacy Training
52.224-3 with Alt I	Privacy Training, with Alternate I
52.225-1	Buy American-Supplies
52.225-1 with Alt I	Buy American-Supplies, with Alternate I
52.225-3	Buy American-Free Trade Agreements-Israeli Trade Act
52.225-3 with Alt II	Buy American-Free Trade Agreements-Israeli Trade Act, with Alternate II

52.225-3 with Alt III	Buy American-Free Trade Agreements-Israeli Trade Act, with Alternate III
52.225-3 with Alt IV	Buy American-Free Trade Agreements-Israeli Trade Act, with Alternate IV
52.225-5	Trade Agreements
52.225-19	Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States
52.225-26	Contractors Performing Private Security Functions Outside the United States
52.226-4	Notice of Disaster or Emergency Area Set-Aside
52.226-5	Restrictions on Subcontracting Outside Disaster or Emergency Area
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving
52.229-12	Tax on Certain Foreign Procurements
52.232-29	Terms for Financing of Commercial Products and Commercial Services
52.232-30	Installment Payments of Commercial Products and Commercial Services
52.232-33	Payment by Electronic Funds Transfer—System for Award Management
52.232-34	Payment by Electronic Funds Transfer—Other than System for Award Management
52.232-36	Payment by Third Party
52.232-40	Providing Accelerated Payments to Small Business Subcontractors
52.232-9X	52.232-9X, Fast Payment Procedure
52.233-3	Protest After Award
52.233-4	Applicable Law for Breach of Contract Claim
52.240-91	Security Prohibitions and Exclusions
52.240-91 with Alt I	Security Prohibitions and Exclusions, with Alternate I
52.240-92	Security Requirements
52.240-92 with Alt II	Security Requirements with Alternate II
52.240-93	Basic Safeguarding of Covered Contractor Information Systems
52.244-6	Subcontracts for Commercial Products and Commercial Services
52.247-64	Preference for Privately Owned U.S.-Flag Commercial Vessels
52.247-64 with Alt I	Preference for Privately Owned U.S.-Flag Commercial Vessels, with Alternate I
52.247-64 with Alt II	Preference for Privately Owned U.S.-Flag Commercial Vessels, with Alternate II

**ADDENDUM TO CONTRACT CLAUSES
FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12**

THE FOLLOWING DOSAR CLAUSES ARE PROVIDED IN FULL TEXT:

CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- (1) Use an email signature block that shows name, the office being supported and company affiliation (e.g. "John Smith, Office of Human Resources, ACME Corporation Support Contractor");
- (2) Clearly identify themselves and their contractor affiliation in meetings;
- (3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and
- (4) Contractor personnel may not utilize Department of State logos or indicia on business cards.

(End of clause)

652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

- (1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and
- (2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

(End of clause)

652.225-71 SECTION 8(A) OF THE EXPORT ADMINISTRATION ACT OF 1979, AS AMENDED (AUG 1999)

(a) Section 8(a) of the U.S. Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)), prohibits compliance by U.S. persons with any boycott fostered by a foreign country against a country which is friendly to the United States and which is not itself the object of any form of boycott pursuant to United States law or regulation. The Boycott of Israel by Arab League countries is such a boycott, and therefore, the following actions, if taken with intent to comply with, further, or support the Arab League Boycott of Israel, are prohibited activities under the Export Administration Act:

- (1) Refusing, or requiring any U.S. person to refuse to do business with or in Israel, with any Israeli business concern, or with any national or resident of Israel, or with any other person, pursuant to an agreement of, or a request from or on behalf of a boycotting country;
- (2) Refusing, or requiring any U.S. person to refuse to employ or otherwise discriminating against any person on the basis of race, religion, sex, or national origin of that person or of any owner, officer, director, or employee of such person;
- (3) Furnishing information with respect to the race, religion, or national origin of any U.S. person or of any owner, officer, director, or employee of such U.S. person;
- (4) Furnishing information about whether any person has, has had, or proposes to have any business relationship (including a relationship by way of sale, purchase, legal or commercial representation, shipping or other transport, insurance, investment, or supply) with or in the State of Israel, with any business concern organized under the laws of the State of Israel, with any Israeli national or resident, or with any person which is known or believed to be restricted from having any business relationship with or in Israel;
- (5) Furnishing information about whether any person is a member of, has made contributions to, or is otherwise associated with or involved in the activities of any charitable or fraternal organization which supports the State of Israel; and,
- (6) Paying, honoring, confirming, or otherwise implementing a letter of credit which contains any condition or requirement against doing business with the State of Israel.

(b) Under Section 8(a), the following types of activities are not forbidden ``compliance with the boycott," and are therefore exempted from Section 8(a)'s prohibitions listed in paragraphs (a)(1)-(6) above:

- (1) Complying or agreeing to comply with requirements:
 - (i) Prohibiting the import of goods or services from Israel or goods produced or services provided by any business concern organized under the laws of Israel or by nationals or residents of Israel; or,
 - (ii) Prohibiting the shipment of goods to Israel on a carrier of Israel, or by a route other than that prescribed by the boycotting country or the recipient of the shipment;
- (2) Complying or agreeing to comply with import and shipping document requirements with respect to the country of origin, the name of the carrier and route of shipment, the name of the supplier of the shipment or the name of the provider of other services, except that no information knowingly furnished or conveyed in response to such requirements

may be stated in negative, blacklisting, or similar exclusionary terms, other than with respect to carriers or route of shipments as may be permitted by such regulations in order to comply with precautionary requirements protecting against war risks and confiscation;

(3) Complying or agreeing to comply in the normal course of business with the unilateral and specific selection by a boycotting country, or national or resident thereof, of carriers, insurance, suppliers of services to be performed within the boycotting country or specific goods which, in the normal course of business, are identifiable by source when imported into the boycotting country;

(4) Complying or agreeing to comply with the export requirements of the boycotting country relating to shipments or transshipments of exports to Israel, to any business concern of or organized under the laws of Israel, or to any national or resident of Israel;

(5) Compliance by an individual or agreement by an individual to comply with the immigration or passport requirements of any country with respect to such individual or any member of such individual's family or with requests for information regarding requirements of employment of such individual within the boycotting country; and,

(6) Compliance by a U.S. person resident in a foreign country or agreement by such person to comply with the laws of that country with respect to his or her activities exclusively therein, and such regulations may contain exceptions for such resident complying with the laws or regulations of that foreign country governing imports into such country of trademarked, trade named, or similarly specifically identifiable products, or components of products for his or her own use, including the performance of contractual services within that country, as may be defined by such regulations.

(End of clause)

**652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS
WITHIN THE UNITED STATES (JUL 1988)**

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

(End of clause)

**652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE)
(AUG 1999)**

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

b) Invoice Submission. The Contractor shall submit invoices in an original and [Note to Contracting Officer: Insert appropriate number] copies to the office identified in Block 18b of the SF-1449. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

BruFMCaccountsProc@state.gov
U.S. Embassy Brussels
Regentlaan 25-27 Boulevard du Régent
1000 Brussels - Belgium

(c) Contractor Remittance Address. The Government will make payment to the Contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

652.239-801 DISCLOSURE OF AI USE CLAUSE (DEVIATION) (SEP 2025)

(a) *Definitions.* As used in this clause-

Artificial Intelligence (AI): The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

- i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.
- ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.
- iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).
- iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

(b) Disclosure of AI Use in Contract Performance. When the Contractor or any of its subcontractors, vendors, or agents intends to incorporate AI into the performance of the contract, the Contractor shall provide the following disclosures in its offer:

Disclose the intended use of AI and provide a description of the AI system or capability and its purpose within the contract scope; specify whether the system was developed internally, acquired from a third party, or is publicly/commercially available; indicate if the AI system will process PII or be used in ways that may affect privacy, civil rights, safety, or public interaction; detail the governance, oversight, and human-in-the-loop mechanisms to be applied; and describe any applicable testing, evaluation, risk management, or bias mitigation measures that have been or will be implemented.

These disclosures must be updated promptly to the Contracting Officer during the period of performance upon any new use of AI or significant material change to the existing AI capability, its functionality, its use case, or its data inputs/outputs during the life of the contract.

The Government reserves the right to review the proposed AI use, request additional safeguards or controls, and/or disallow its use if it is deemed inconsistent with agency policy, legal requirements, or federal AI governance standards.

(End of Clause)

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

- (1) That it has obtained authorization to operate and do business in the country or countries in which this contract will be performed;
- (2) That it has obtained all necessary licenses and permits required to perform this contract; and,
- (3) That it shall comply fully with all laws, decrees, labor standards, and regulations of the country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

(End of clause)

652.236-70 ADDITIONAL SAFETY MEASURES (OCT 2017)

In addition to the safety/accident prevention requirements of FAR 52.236-13, Accident Prevention Alternate I, the contractor shall comply with the following additional safety measures.

(a) High Risk Activities. If the project contains any of the following high risk activities, the contractor shall follow the section in the latest edition, as of the date of the solicitation, of the U.S. Army Corps of Engineers Safety and Health manual, EM 385-1-1, that corresponds to the high risk activity. Before work may proceed, the contractor must obtain approval from the COR of the written safety plan required by FAR 52.236-13, Accident Prevention Alternate I (see paragraph (f) below), containing specific hazard mitigation and control techniques.

- (1) Scaffolding;
- (2) Work at heights above 1.8 meters;
- (3) Trenching or other excavation greater than one (1) meter in depth;
- (4) Earth-moving equipment and other large vehicles;
- (5) Cranes and rigging;
- (6) Welding or cutting and other hot work;
- (7) Partial or total demolition of a structure;
- (8) Temporary wiring, use of portable electric tools, or other recognized electrical hazards. Temporary wiring and portable electric tools require the use of a ground fault circuit interrupter (GFCI) in the affected circuits; other electrical hazards may also require the use of a GFCI;
- (9) Work in confined spaces (limited exits, potential for oxygen less than 19.5 percent or combustible atmosphere, potential for solid or liquid engulfment, or other hazards considered to be immediately dangerous to life or health such as water tanks, transformer vaults, sewers, cisterns, etc.);
- (10) Hazardous materials - a material with a physical or health hazard including but not limited to, flammable, explosive, corrosive, toxic, reactive or unstable, or any operation

creates any kind of contamination inside an occupied building such as dust from demolition activities, paints, solvents, etc.; or

(11) Hazardous noise levels as required in EM 385-1 Section 5B or local standards if more restrictive.

(b) Safety and Health Requirements. The contractor and all subcontractors shall comply with the latest edition of the U.S. Army Corps of Engineers Safety and Health manual EM 385-1-1, or OSHA 29 CFR parts 1910 or 1926 if no EM 385-1-1 requirements are applicable, and the accepted contractor's written safety program.

(c) Mishap Reporting. The contractor is required to report immediately all mishaps to the COR and the contracting officer. A "mishap" is any event causing injury, disease or illness, death, material loss or property damage, or incident causing environmental contamination. The mishap reporting requirement shall include fires, explosions, hazardous materials contamination, and other similar incidents that may threaten people, property, and equipment.

(d) Records. The contractor shall maintain an accurate record on all mishaps incident to work performed under this contract resulting in death, traumatic injury, occupational disease, or damage to or theft of property, materials, supplies, or equipment. The contractor shall report this data in the manner prescribed by the contracting officer.

(e) Subcontracts. The contractor shall insert this clause, including this paragraph (e), with appropriate changes in the designation of the parties, in subcontracts.

(f) Written program. The plan required by paragraph (f)(1) of the clause entitled "Accident Prevention Alternate I" shall be known as the Site Safety and Health Plan (SSHP) and shall address any activities listed in paragraph (a) of this clause, or as otherwise required by the contracting officer/COR.

(1) The SSHP shall be submitted at least 10 working days prior to commencing any activity at the site.

(2) The plan must address developing activity hazard analyses (AHAs) for specific tasks. The AHAs shall define the activities being performed and identify the work sequences, the specific anticipated hazards, site conditions, equipment, materials, and the control measures to be implemented to eliminate or reduce each hazard to an acceptable level of risk. Work shall not begin until the AHA for the work activity has been accepted by the COR and discussed with all engaged in the activity, including the Contractor, subcontractor(s), and Government on-site representatives.

(3) The names of the Competent/Qualified Person(s) required for a particular activity (for example, excavations, scaffolding, fall protection, other activities as specified by EM 385-1-1) shall be identified and included in the AHA. Proof of their competency/qualification shall be submitted to the contracting officer or COR for acceptance prior to the start of that work activity. The AHA shall be reviewed and modified as necessary to address changing site conditions, operations, or change of competent/qualified person(s).

(End of clause)

652.237-72 OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE LEAVE (FEB 2015)

(a) The Department of State observes the following days as holidays:

- New Year's Day
- Martin Luther King's Birthday
- Washington's Birthday
- Memorial Day
- Independence Day
- Labor Day
- Columbus Day
- Veterans Day
- Thanksgiving Day
- Christmas Day

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) When New Year's Day, Independence Day, Veterans Day or Christmas Day falls on a Sunday, the following Monday is observed; when it falls on Saturday, the preceding Friday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the contractor's personnel work on a holiday, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, unless authorized pursuant to an overtime clause elsewhere in this contract.

(c) When the Department of State grants administrative leave to its Government employees, assigned contractor personnel in Government facilities shall also be dismissed. However, the contractor agrees to continue to provide sufficient personnel to perform round-the-clock requirements of critical tasks already in operation or scheduled and shall be guided by the instructions issued by the contracting officer or his/her duly authorized representative.

(d) For fixed-price contracts, if services are not required or provided because the building is closed due to inclement weather, unanticipated holidays declared by the President, failure of Congress to appropriate funds, or similar reasons, deductions will be computed as follows:

- (1) The deduction rate in dollars per day will be equal to the per month contract price divided by 21 days per month.
- (2) The deduction rate in dollars per day will be multiplied by the number of days services are not required or provided. If services are provided for portions of days, appropriate adjustment will be made by the contracting officer to ensure that the contractor is compensated for services provided.

(e) If administrative leave is granted to contractor personnel as a result of conditions stipulated in any "Excusable Delays" clause of this contract, it will be without loss to the contractor. The cost of salaries and wages to the contractor for the period of any such excused absence shall be a reimbursable item of direct cost hereunder for employees whose regular time is normally charged, and a reimbursable item of indirect cost for employees whose time is normally charged indirectly in accordance with the contractor's accounting policy.

(End of clause)

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ATTACHEMENT B
SECTION 3 – SOLICITATION PROVISIONS

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A)

ADDENDUM TO 52.212-1 INSTRUCTIONS TO OFFERORS - COMMERCIAL ITEMS (SEP 2023)

DEADLINE OF SUBMISSION OF PROPOSALS

The proposals shall be submitted as soon as possible but not later than 14:00 hours Central European Time (CET) on May 9th, 2026, to the Contracting & Acquisition team at Brusselsbids@state.gov. The subject should read “Proposal 19BE2026Q0065”. No proposals will be accepted after the time specified.

Submittal of Electronic Proposals:

Electronic offers/proposals shall be submitted in a format readable by Microsoft (MS) Word, MS Excel, or Adobe PDF, as applicable. Individual email size shall not exceed 45 MB.

The Government shall not be responsible for an offeror being unable to successfully transmit emails due to any file size constraints of their email systems. Contractors shall ensure that emails have been transmitted and that messages have not been returned “undeliverable”.

Use of electronic depositories is not permitted (for example, Google Drive).

Definition. “Electronic proposal,” as used in this provision, means a proposal, revision, or modification of a proposal, or withdrawal of a proposal that is transmitted to and received by the Government via electronic means.

The Government reserves the right to make award solely on the electronic proposal. However, if requested to do so by the Contracting Officer, the apparently successful offeror shall promptly submit the complete original signed proposal.

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THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES ARE INCORPORATED BY REFERENCE:

Number	Title
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation
52.204-7	System for Award Management—Registration
52.204-7 with Alt I	System for Award Management—Registration, with Alternate I
52.204-90	Offeror Identification
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts)
52.209-12	Certification Regarding Tax Matters
52.219-2	Equal Low Bids
52.222-18	Certification Regarding Knowledge of Child Labor for Listed End Products
52.222-48	Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification
52.222-52	Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan
52.223-4	Recovered Material Certification
52.225-2	Buy American Certificate
52.225-4	Buy American-Free Trade Agreements-Israeli Trade Act Certificate
52.225-6	Trade Agreements-Certificate
52.225-20	Prohibition on Conducting Restricted Business Operations in Sudan-Certification
52.225-25	Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications
52.226-3	Disaster or Emergency Area Representation
52.229-11	Tax on Certain Foreign Procurements—Notice and Representation
52.240-90	Security Prohibitions and Exclusions Representations and Certifications

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ATTACHEMENT C
SECTION 4 - EVALUATION FACTORS

52.212-2 Evaluation—Commercial Products and Commercial Services (DEVIATION AUG 2025)

ADDENDUM TO FAR 52.212-2 EVALUATION - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION JAN 2026)

The Government will evaluate offers in accordance with FAR Part 12 using a comparative evaluation approach to determine which offer represents the best overall value to the Government. All offers received will first undergo a compliance review to assess completeness and conformity with the requirements of this solicitation. Offers that are incomplete or fail to comply with solicitation requirements may be rejected in accordance with FAR 52.212-1(c).

Offers determined to be compliant will be evaluated through a direct comparison against the stated evaluation factors to identify relative strengths, weaknesses, and price considerations. This acquisition is not conducted using a Lowest Price Technically Acceptable (LPTA) or trade-off source selection method. However, the Government may award to the lowest-priced offer if it is determined to represent the best overall value based on the evaluation criteria.

Award will be made to the responsible offeror whose offer conforms to the solicitation and is determined to be most advantageous to the Government, price and other factors considered. The following factors will be used in the evaluation:

(1) Technical Capability

The Government will evaluate the offeror's Technical Proposal to determine the extent to which the offeror demonstrates the capability to successfully perform the requirements of the Statement of Work.

The Government will also evaluate the offeror's approach to tracking and reporting BPA Call activity to ensure accurate and timely reporting in accordance with contract requirements.

(2) Past Performance and Experience

The Government will evaluate the Offeror's experience and past performance on contracts for services similar in scope, size, and complexity to the requirements of this solicitation. Experience will be evaluated to determine the extent to which the Offeror has previously performed similar work. Past performance will be evaluated to assess the quality of the Offeror's performance on relevant contracts. The Government may consider information obtained from references provided by the Offeror, CPARS, or other relevant sources. If past

performance information is unavailable or limited, the Offeror will receive a rating of “Unknown” (Neutral) which will not be considered favorable or unfavorable in the evaluation.

(3) Price

Price will be evaluated based on the total price submitted in accordance with the pricing structure established in this solicitation. The Government will evaluate proposed prices to determine whether they are fair and reasonable.

For Blanket Purchase Agreements, pricing established at the time of BPA award will serve as the basis for pricing under future BPA calls unless otherwise specified in the solicitation.

Responsibility Determination:

The Government will determine contractor responsibility in accordance with FAR 9.104. The apparent successful offeror shall demonstrate adequate financial resources, the ability to meet performance requirements and schedules, a satisfactory performance record, integrity and business ethics, and the necessary organization, experience, technical capability, equipment, and resources to perform the requirement. The offeror must also be otherwise qualified and eligible for award under applicable laws and regulations.

Award Without Discussions:

In accordance with FAR 52.212-1(d), the Government intends to evaluate offers and establish the Blanket Purchase Agreement (BPA) without conducting discussions and may base its decision on the initial submissions. The Government reserves the right to conduct discussions if the Contracting Officer determines that discussions are necessary.

This acquisition is conducted using commercial procedures under FAR Part 12. Post-award debriefings, if provided, will be handled in accordance with FAR 52.212-1(e).

ATTACHEMENT D
SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

The offer shall set forth current, accurate, and complete information as required by this solicitation. The offer shall be prepared as follows:

PART I: OFFEROR INFORMATION

General information about the offeror, including legal entity name, address, and CAGE/NCAGE code:

Company Name	
Company Address	
CAGE/NCAGE Code	
Point of Contact (Full Name)	

PART II: REPRESENTATIONS & CERTIFICATIONS

Failure to furnish and deliver all requested information in accordance with these instructions may result in exclusion from further consideration pursuant to FAR 52.212-1(b)(11). The penalty for making false statements is prescribed in 18 USC 1001.

The following solicitation provisions are incorporated by reference:

Provision	Title and Date
FAR 52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
FAR 52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
FAR 52.222-56	Certification Regarding Trafficking in Persons Compliance Plan (Jan 2026)
FAR 52.229-11	Tax on Certain Foreign Procurements—Notice and Representation (Jan 2026)
FAR 52.240-90	Security Prohibitions and Exclusions Representations and Certifications (Jan 2026)

The following solicitation provision is provided in full text:

52.204-90 OFFEROR IDENTIFICATION (SEP 2025)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) Definitions. As used in this provision—

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) Unique entity identifier (UEI).

The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) Taxpayer identification. The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: _____;☐ TIN has been applied for; or ☐ TIN is not required because:☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;☐ Offeror is an agency or instrumentality of a foreign government; or☐ Offeror is an agency or instrumentality of the Federal Government.

(2) Type of organization.

☐ Sole proprietorship;☐ Partnership;☐ Corporate entity (not tax-exempt);☐ Corporate entity (tax-exempt);☐ Government entity (Federal, State, or local);☐ Foreign government;☐ International organization per 26 CFR 1.6049-4; or☐ Other.

(3) Common parent.

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or☐ Name and TIN of common parent:

Name: .

TIN:

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is...	Then...
Located in the United States or its outlying areas	Submit a request to the DLA CAGE Branch via https://cage.dla.mil

Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts)
Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a “doing business as” name) for—

- (i) Its immediate owner(s), if any;
- (ii) Its highest-level owner, if any; and
- (iii) Any predecessor(s), or predecessor of an Offeror’s predecessor, that held a Federal contract or grant within the last three years.

Owner Type	CAGE Code	Legal Business Name
Immediate owner		
Highest-level owner		
Predecessor*		

* Predecessor CAGE code may be marked “Unknown.”

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (JAN 2026)

(a) Definitions. As used in this clause—

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) Representation. The Offeror represents that-

- (1) It [] is, [] is not an inverted domestic corporation; and
- (2) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (JAN 2026)

(a) Definitions. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative

Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity

Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the

subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
 - (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
 - (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
 - (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
- (d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS - NOTICE AND REPRESENTATION (JAN 2026)

(a) Definitions. As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;

- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if—
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through
- (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.
- (d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that
 - (1) It ☐ is ☐ is not a foreign person; and
 - (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.
 - (a) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—
 - (b) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
 - (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(c) If the Offeror selects “is” in paragraph (d)(1) and “partial or no exemption” in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(d) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction.

This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For

questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

652.228-70 DEFENSE BASE ACT - COVERED CONTRACTOR EMPLOYEES (FEB 2015)

(a) Offerors shall indicate below whether or not any of the following categories of employees will be employed on the resultant contract, and, if so, the number of such employees:

Category	Yes/No	Number
(1) United States citizens or residents		
(2) Individuals hired in the United States, regardless of citizenship		Local Nationals: Third Country Nationals:
(3) Local nationals or third country nationals where contract performance takes place in a country where there are no local workers' compensation laws		Local Nationals: Third Country Nationals:
(4) Local nationals or third country nationals where contract performance takes place in a country where there are local workers' compensation laws		Local Nationals: Third Country Nationals:

(b) The Contracting Officer has determined that for performance at the designated place of performance:

[X] Workers' compensation laws exist that will cover local nationals and third country nationals.

[] Workers' compensation laws do not exist that will cover local nationals and third country nationals.

(c) If the offeror has indicated “yes” in block (a)(4) of this provision, the offeror shall not purchase Defense Base Act insurance for those employees. However, the offeror shall assume liability toward the employees and their beneficiaries for war-hazard injury, death, capture, or detention, in accordance with the clause at FAR 52.228-4.

(End of provision)

CONTRACTOR RECRUITMENT OF THIRD COUNTRY NATIONALS (TCNS)

A Third Country National (TCN) is a citizen or legal resident of a country other than the host country or the United States of America.

The offeror certifies that it:

☐ Will employ TCNs in the performance of the contract.

☐ Will not employ TCNs in the performance of the contract.

If employing TCNs, the offeror further certifies that:

(i) ☐ Accommodation will be provided for the TCNs.

(ii) ☐ Accommodation will not be provided for the TCNs.

(End of provision)

ADDENDUM TO FAR 52.222-56 CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN (JAN 2026)

By checking the box below, the Offeror certifies the following:

☐ The Offeror has implemented a compliance plan to prevent the prohibited activities listed in FAR 52.222-50(b), Combating Trafficking in Persons, and to monitor, detect, and terminate any subcontractor engaging in such prohibited activities.

☐ After conducting due diligence, the Offeror certifies that:

(a) To the best of its knowledge and belief, neither the Offeror nor any proposed agents, subcontractors, or their agents are engaged in any of the prohibited activities listed in FAR 52.222-50(b), or

(b) If any abuses relating to prohibited activities under FAR 52.222-50(b) were identified, the Offeror or proposed subcontractor has taken appropriate remedial and referral actions.

(End of provision)

ADDENDUM TO DOSAR 652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

I, as duly authorized representative of the offeror, hereby certify that the contractor I am representing has obtained or will prior to providing services in any of the countries covered by this contract obtain all necessary licenses and permits and authorization to operate and do business in

the country or countries of performance as required by the clause at DOSAR 652.242-73. Furthermore, the Contactor will comply with all laws, decrees and regulations of said country or countries.

(End of provision)

CERTIFICATION

I hereby certify that the responses to the above representations, certifications, and other statements are accurate and complete.

Name

Signature

Date

{END OF ATTACHMENT}